

HEADNOTE

“The principles set out by the Court of Appeal on the term “offering” within the meaning of Art. 25(a) UPCA (UPC_CoA_534/2024, Order of 3 October 2025 mn. 205 – 206, Belkin v. Philips), can also be applied to the concept of “offering” in Art. 25(b) and (c) and 26 UPCA.”

COURT

Court of Appeal Luxembourg

PROCEEDINGS

Application for provisional measures

PATENT

EP 4 346 690 B1

Automated management of clinical modifications to treatment plans using three-dimensional controls

KEYWORDS

application for provisional measures

penalty payments

Article 25

Right to prevent the direct use of the invention

SUMMARY

The Court of Appeal in Luxembourg ruled on an application for provisional measures. The patent at issue relates to automated management of clinical modifications to treatment plans using three-dimensional controls. According to the headnotes of the decision, the principles established by the Court regarding the term “offering” under Article 25(a) of the UPC Agreement can also be applied to the same concept as it appears in Articles 25(b), 25(c), and 26 of the UPC Agreement.